

Mann v. Meta Platforms Inc., Slip Copy (2025)

2025 WL 3255011

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United States District Court, N.D. California.

Gerald MANN, Plaintiff,

v.

META PLATFORMS INC., Defendant.

Case No. 24-cv-09348-VC

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Signed September 22, 2025

Attorneys and Law Firms

Gerald Mann, Tucson, AZ, Pro Se.

**ORDER RE: MAGISTRATE JUDGE'S REPORT AND
RECOMMENDATION**

Re: Dkt. No. 12

VINCE CHHABRIA, United States District Judge

*1 The Court has received the magistrate judge's Report and Recommendation and notes that there are no objections to the Report. Although the Court is unsure of the magistrate judge's conclusion that the lawsuit is barred by **Section 230** of the Communications Decency Act, what's clear is that the amended complaint fails to state a claim for failure to warn or for negligent infliction of emotional distress. Indeed, the complaint is frivolous in these regards. Accordingly, it is dismissed for lack of jurisdiction. See *Pratt v. Sumner*, 807 F.2d 817, 819 (9th Cir. 1987) ("Dismissal for want of jurisdiction may occur ... where a claim is 'wholly insubstantial and frivolous.' ") (quoting *Bell v. Hood*, 327 U.S. 678, 682-83 (1946)).

IT IS SO ORDERED.

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